



U.S. Department
of Transportation

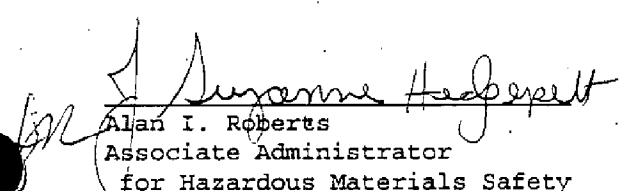
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10153 (EXTENSION)
ORIGINAL December 17, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10153 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 29 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

American Cyanamid Company
Wayne, NJ

July 14, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DEC 17 1990

DOT-E 10153

1. American Cyanamid Company, Wayne, N.J., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain Poison B solid described in paragraph 3 below for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of large, collapsible polypropylene-lined woven polypropylene bulk bags having a capacity of 1102.3 pounds each, and top and bottom outlets, for shipment of a Poison B solid, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on American Cyanamid Company's application dated February 28, 1989, supplemented by letter dated May 1, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Terbufos; Organic phosphate compound mixtures, dry, classed as poison B.

4. PROPER SHIPPING NAME (49 CFR 172.101). Organic phosphate compound mixtures, dry.

5. REGULATION AFFECTED. 49 CFR 172.377 (h).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification collapsible, flexible non-reusable bulk container. Bag is fabricated of polyester or nylon reinforced, single ply woven polypropylene, incorporating lifting straps of woven polyester webbing, plus an interior extrusion coating of polypropylene film (of 0.00118-inch minimum thickness), and having discharge and/or inlet openings closed by means of nylon tie ribbons, and a capacity of not over 1102.3 pounds. The bags, prepared as for shipment, must be capable of satisfactorily withstanding: free-fall drop tests (three from a height of four feet); Jerk test; Topple test; Topple and Drag test; Righting test; Abrasion test; as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., procedure T-4102-85, dated February, 1985.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shipment by highway must be in closed vehicles or freight containers, in full truckloads only.

c. Each bag must be permanently and durably marked in accordance with the requirements of §172.331 in letters at least two inches high on a contrasting background. The use of labels, tags or signs for marking purposes is prohibited.

d. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

e. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 30, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 17 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG.